

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X
FEDERICO BERRIOS,

Plaintiff

- against -

**THE CITY OF NEW YORK, DETECTIVE
VINCENT KONG, SHIELD # 4149,**

Defendants.
-----X
,

Index No. _____

Purchased 6-26-15

Plaintiff designates New York
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
June 26, 2015



THE LAW OFFICES OF ELLIOT S. KAY

Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(646) 241-6134

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY**

FEDERICO BERRIOS

Plaintiff,

Index No.

Verified Complaint

- against -

**THE CITY OF NEW YORK, DETECTIVE
VINCENT KONG, SHIELD # 4149,**

Defendants.

Plaintiff FEDERICO BERRIOS, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff FEDERICO BERRIOS was a resident of New York County, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times hereinafter mentioned, defendant, DETECTIVE VINCENT KONG, SHIELD # 4149 ("DET. KONG") was and is a police officer

employed by Defendants.

BACKGROUND

5. On September 12, 2013, at approximately 6:30 a.m., at 2553 3rd Avenue in New York County, without just cause or provocation, DET. KONG, a detective working for defendant CITY, unlawfully entered Plaintiff's apartment and handcuffed Plaintiff. Next, DET. KONG falsely accused Plaintiff of having committed the crime of Criminal Possession of Marijuana and related charges.
6. On or about September 12, 2013, a criminal complaint was issued at the directive of the Defendants and a criminal action against Plaintiff commenced.
7. The criminal matter was terminated in favor of Plaintiff on April 2, 2014.

PROCEDURAL POSTURE

8. On June 27, 2014, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
9. More than thirty days have elapsed since service of said notice, and defendant CITY has failed to pay or adjust this claim.
10. A 50-H hearing has been held.
11. This action has been commenced within one year and ninety days after the causes of action accrued.
12. Plaintiff has duly complied with all conditions precedent to the commencement of this

action.

FIRST CAUSE OF ACTION

13. Paragraphs 1-12 are incorporated by reference as though fully set forth herein.
14. In arresting Plaintiff, the Defendants acted with malice.
15. The Defendants lacked probable cause to arrest Plaintiff.
16. Plaintiff had to defend against false charges.
17. All charges pending against Plaintiff were dismissed and sealed on April 2, 2014.
18. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, NY
June 26, 2015

THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(646) 241-6134

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

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FEDERICO BERRIOS,

Plaintiff

-against-

**CITY OF NEW YORK, DETECTIVE
VINCENT KONG, SHIELD # 4149,**

Defendants

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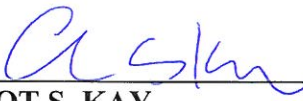
Verification

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I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
June 26, 2015



ELLIOT S. KAY